

TEXAS IEP

Evaluation Delay Action Kit

Stop Timeline Violations Before They Cost Your Child Another Month

WHAT'S INCLUDED IN THIS KIT:

- ✓ The "Day 46" Demand Letter (Citing SPP 11 & TEC §29.004)
- ✓ School Day vs. Calendar Day Calculator
- ✓ Compensatory Services Worksheet
- ✓ The "Verbal Request" Recovery Script

How to Use This Action Kit

Texas law is clear: School districts must complete IEP evaluations within 45 school days of receiving your signed consent. When they don't, it's not just an administrative delay—it's a violation of Texas Education Code §29.004 and a denial of your child's right to a Free Appropriate Public Education (FAPE).

This kit gives you the exact language, calculations, and scripts you need to professionally document violations, demand compliance, and secure compensatory services if appropriate.

Important: These templates are designed to be professional, legally grounded, and non-confrontational. The goal is accountability, not hostility.

STEP	ACTION
1	Calculate your dates using the School Day Calculator (Page 5)
2	If past Day 45, use the "Day 46" Demand Letter (Page 3)
3	If evaluation started from verbal request, use Recovery Script (Page 7)
4	If delay caused harm, calculate compensatory services (Page 6)

■ **Legal Disclaimer:** This kit provides educational information based on Texas special education law. It is not legal advice. For legal representation, consult a special education attorney in Texas.

Template 1: The "Day 46" Demand Letter

Use this when the 45 school day evaluation deadline has passed

[Your Name]

[Your Address]

[City, State ZIP]

[Your Email]

[Your Phone]

[Date]

[Special Education Director Name]

[School District Name]

[District Address]

[City, State ZIP]

Re: Timeline Violation – Full Individual and Initial Evaluation for [Child's Full Name], DOB: [Date]

Dear [Director Name],

I am writing to formally notify you that [District Name] has violated the evaluation timeline required under Texas Education Code §29.004 and federal regulation 34 CFR §300.301 for my child, [Child's Name], a student at [School Name].

Timeline Documentation:

- Consent signed and submitted: _____ (Date)
- 45th school day deadline: _____ (Date)
- Today's date: _____ (Date)
- Days overdue: ____ school days

Under TEC §29.004, the district shall complete the full individual and initial evaluation "not later than the 45th school day following the date on which the district receives written consent." This deadline has passed without the completion of the evaluation or delivery of the written report.

Compliance Request:

This violation triggers non-compliance with **State Performance Plan (SPP) Indicator 11**, which is monitored by the Texas Education Agency. I am requesting:

1. Immediate completion of the evaluation
2. Written confirmation of the ARD meeting date (within 30 calendar days of report completion per TEC §29.004)
3. A written explanation of the cause of the delay
4. Consideration of compensatory services to remediate any educational harm caused by the delay

I expect a response within 5 business days confirming the evaluation completion date and ARD meeting schedule. If I do not receive a response, I will file a formal complaint with the Texas Education

Agency.

I remain committed to working collaboratively with the district to ensure my child receives the evaluation and support required under the law.

Sincerely,

[Your Signature]

[Your Typed Name]

CC: Principal, [School Name]
ARD Committee Chairperson

Template 2: School Day vs. Calendar Day Calculator

Use this to verify if the district has violated the timeline

Why This Matters: Texas uses **school days** for the 45-day evaluation period, but switches to **calendar days** for the 30-day ARD meeting window. Understanding the difference is critical to documenting violations.

School Days Include: Regular instructional days only

School Days Exclude: Weekends, holidays, teacher in-service days, student holidays

Exception: If your child was absent for 3+ consecutive days during the evaluation window, the timeline extends by that number of days.

CALCULATION WORKSHEET	
Date you signed consent form:	_____
Your school district:	_____
Link to district calendar:	_____
Count forward 45 SCHOOL DAYS (use district calendar):	
Week 1: Days 1-5	_____ to _____
Week 2: Days 6-10	_____ to _____
Week 3: Days 11-15	_____ to _____
Week 4: Days 16-20	_____ to _____
Week 5: Days 21-25	_____ to _____
Week 6: Days 26-30	_____ to _____
Week 7: Days 31-35	_____ to _____
Week 8: Days 36-40	_____ to _____
Week 9: Days 41-45	_____ to _____
45th School Day (Deadline):	_____
Was your child absent 3+ consecutive days?	■ Yes ■ No
If yes, extend deadline by _____ days	New Deadline: _____

Today's Date:	_____
Timeline Status:	■ On Time ■ VIOLATED

Template 3: Compensatory Services Worksheet

Use this if the delay caused educational harm to your child

What Are Compensatory Services?

When a district violates FAPE (such as missing evaluation deadlines), they may be required to provide "compensatory education" to make up for the lost opportunity. In Texas, courts favor a **qualitative approach**: providing enough services to place the child where they would have been if the violation had not occurred.

Key Principle: Compensatory services are not about punishment—they're about restoration of educational benefit.

COMPENSATORY SERVICES DOCUMENTATION	
THE DELAY	
Have been completed by:	_____
Completed on:	_____
_____ days:	_____ days
_____ weeks:	_____ weeks
THE HARM	
How was your child denied during the delay?	
	☐ Occupational therapy
	☐ Math support
	☐ Counseling services

How did this impact your child? (Be specific):	

Overall impact:	

Template 4: The "Verbal Request" Recovery Script

Use this if you requested an evaluation verbally and were ignored

The Problem: You asked for an evaluation in a parent-teacher conference or phone call. The school said "we'll look into it" or "let's wait and see." Weeks or months passed. Nothing happened.

The Legal Reality: Verbal requests do not trigger the legal 15-day response timeline. Only **written requests** start the clock.

Your Action: Formalize the request retroactively and establish a paper trail.

[Your Name]

[Your Email]

[Your Phone]

[Date]

To: [Principal Name], Principal

[Special Ed Coordinator Name], Special Education Coordinator

Subject: Formal Written Request for Special Education Evaluation – [Child's Full Name]

Dear [Principal Name] and [Coordinator Name],

I am writing to formalize my request for a Full Individual and Initial Evaluation (FIIIE) for my child, [Child's Full Name], DOB [Date], currently enrolled in [Grade] at [School Name].

Background:

On [Date], I verbally requested an evaluation during [meeting/phone call/conference] with [Staff Member Name]. At that time, I was told [what they said, e.g., "we would monitor the situation" or "we'd discuss it at the next meeting"]. However, no formal consent paperwork or Prior Written Notice was provided, and no evaluation has been initiated.

I understand that under Texas law, verbal requests do not trigger the legal timeline for evaluation. Therefore, **please consider this email my formal written request** as of today's date.

Reason for Evaluation Request:

[Child's Name] is struggling with [be specific: reading, math, attention, behavior, etc.]. Despite interventions such as [list any RTI/504/classroom supports], [he/she/they] continues to perform significantly below grade level in [subject/area].

Specific concerns include:

- [Concern 1: e.g., "Unable to decode multi-syllable words despite daily tutoring"]
- [Concern 2: e.g., "Completes only 30% of assignments even with extended time"]
- [Concern 3: e.g., "Experiences meltdowns 2-3 times per week requiring removal from class"]

Requested Evaluations:

I am requesting assessments in the following areas:

- Academic achievement (reading, writing, math)
- Cognitive/intellectual functioning
- Speech and language
- Occupational therapy/fine motor
- Behavioral/emotional

■ Other: _____

Under Texas Education Code §29.004, I understand the district has 15 school days from receipt of this written request to provide consent paperwork or a Prior Written Notice explaining a refusal to evaluate.

Please confirm receipt of this request and provide the consent form or PWN by [Date 15 school days from today].

Thank you for your prompt attention to this matter. I look forward to working collaboratively with the ARD committee to support my child's educational needs.

Sincerely,
[Your Name]

Attachments:

- Recent report cards
- Teacher progress reports
- Any relevant medical/behavioral documentation

What Happens After You Send These Documents?

Expected District Responses:

Best Case Scenario: The district acknowledges the violation, immediately schedules the evaluation or ARD meeting, and works with you to determine appropriate compensatory services.

Common Responses You Might Hear:

- "We're short-staffed" → Not a legal excuse (TEC §29.004 has no staffing exception)
- "Your child was absent" → Only if 3+ consecutive days during eval window
- "We didn't receive your consent" → Respond with documentation/email confirmation
- "The psychologist is on leave" → District's responsibility to ensure compliance

If They Don't Respond Within 5 Business Days:

1. Send a follow-up email referencing your original request
2. CC the Superintendent
3. If still no response after 10 business days, file a TEA complaint

Filing a TEA Complaint:

You can file online at: <https://tea.texas.gov/about-tea/other-services/dispute-resolution>

Include:

- Copy of your initial evaluation request
- School Day Calculator showing the violation
- Copy of the "Day 46" Demand Letter
- Any correspondence from the district

Remember: You are not being difficult. You are being thorough. Your child's education cannot wait for the district to "get around to it."

ADDITIONAL RESOURCES
Texas Special Education Rules & Regulations:
https://tea.texas.gov/academics/special-student-populations/special-education
Navigator Kids AI Texas IEP Hub:
https://navigatorkidsai.com/iep/states/texas/
Need live 1-on-1 strategy support? Get the IEP Battle Plan:

<https://navigatorkidsai.com/iep/battle-plan/>

Legal Disclaimer: This Action Kit is provided for educational purposes only and does not constitute legal advice. The information contained herein is based on Texas special education law as of 2025. For legal representation or case-specific guidance, please consult a licensed special education attorney in Texas.

Navigator Kids AI is not a law firm and does not provide legal services.